

SPR095877 Limited Conservatorship of Gregory Nicholas

County: sonoma

Division: Probate

Hearing date: 2026-07-02

Motion: Petition for Substituted Judgment

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Petition for Substituted Judgment

Tentative Ruling: At the March 27, 2026 hearing, this matter was continued to the present hearing date for two reasons. The Court was inclined to grant the petition, but (1) the trust must specifically require accountings to be made in accordance with California Probate Code §§1060 et. seq. and 2620 et. seq. pursuant to California Rules of Court Rule 7.903(c)(6); and (2) the petitioner must serve and file a verified supplement presenting a California Probate Code §2320(c) compliant bond calculation.

On June 23, 2026, the petitioner filed a verified supplement. The supplement contains a trust with an updated accounting provision at Article VI(G). That provision incorrectly states that accountings are to be presented to the Court every other year. This statement is incorrect because the trustee's first accounting is to be filed at the expiration of one year from the time of appointment, and thereafter not less frequently than biennially. California Probate Code §2620(a). The trust presented with the original petition correctly states the timing requirement, but the trust attached to the supplement does not. So, the petitioner has not adequately addressed the first issue. The June 23, 2026 filed supplement also fails to include a California Probate Code §2320(c) compliant bond calculation.

This matter is CONTINUED to October 16, 2026 at 9:30 a.m. in Department 12 to allow the petitioner an additional opportunity to address the Court's concerns. The petitioner should note that, normally, only three continuances are allowed before a matter is dismissed without prejudice. See Sonoma County Local Rule 6.2.C.2.c.

The Probate Court's review of this trust DOES NOT Guarantee Medi-Cal Eligibility or any other Public Benefits provided by any governmental entity. The Probate Court DOES NOT Guarantee that all Federal and State requirement have been met.